

23PSCV02609 23PSCV02609

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Case Number: 23PSCV02609 Hearing Date: July 30, 2026 Dept: H

John J.G. Doe v. Rowland

Unified School District,

Case No. 23PSCV02609

(Related to Case No. 24PSCV03389

ORDER ON MOTION

TO COMPEL DEPOSITION

Plaintiff John J.G. Doe, by and

through his Guardian Ad Litem, Mary Galindo's Motion to Compel the Deposition

of the Person Most Qualified for the Rowland Unified School District Re Prior

Complaints is GRANTED, but with Categories No. 1-8 limited

as to Martinez only.

Background

Case

No. 23PSCV02609

Plaintiff

J.G. Doe, by and through his guardian ad litem, Mary Galindo ("J.G. Doe")

alleges as follows: J.G. Doe was sexually assaulted, abused and harassed in and

around 2017 to 2018, when he was 7 and 8 years old and a student at Rowland

Elementary School, by a teacher.

On

August 25, 2023, J.G. Doe filed a complaint, asserting causes of action against

Rowland Unified School District ("RUSD") and Does 1-20 for: (1) Negligence and

(2) Public Entity Liability for Failure to Report Mandatory Duty.

On May

5, 2025, the Court related Case Nos. 23PSCV02609 and 24PSCV03389; Case No. 23PSCV03389 was deemed the lead case.

On

June 2, 2025, a “Stipulation Regarding Use of Discovery in Related Cases; Order” was entered.

The

Final Status Conference is set for September 8, 2025. Trial is set for September 22, 2026.

Case No. 24PSCV03389

Plaintiff Jane E.O. Doe (“Jane E.O.”) alleges as follows: Jane E.O. was sexually harassed, molested and abused in and around 2008-2012, when she was between the ages of 8-12, by a teacher at RUSD.

On

October 9, 2024, Jane E.O. filed a complaint, asserting a cause of action against RUSD and Does 1-20 for: (1) Negligence.

On May

5, 2025, the Court related Case Nos. 23PSCV02609 and 24PSCV03389; Case No. 23PSCV03389 was deemed the lead case.

On

July 16, 2026, Jane E.O. dismissed the case, with prejudice.

Legal Standard

“If the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.” (Code Civ. Proc., § 2025.230).

“If, after service of a deposition notice, . . . a person designated by an organization that is a party under Section 2025.230, without having served a valid objection. . . , fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).)

“A motion under subdivision (a) shall comply with both of the following:

(1)

The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be

accompanied by a meet and confer declaration. . . , or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contracted the deponent to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b).)

“If a motion under subdivision (a) is granted, the court shall impose a monetary sanction. . . , unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Discussion

J.G.

Doe moves the Court for an order, pursuant to Code of Civil Procedure sections 2025.410 and 2025.450, compelling RUSD to designate and produce its Person Most Qualified (“PMQ”) to appear and testify regarding Categories 1-8 set forth in J.G. Doe’s “Notice of Taking the Deposition of the Person Most Qualified Re Prior Complaints” (“Deposition Notice”).

J.G.

Doe's counsel Laura Jimenez ("Jimenez") represents, and/or the accompanying exhibits reflect, as follows:

On

February 12, 2026, J.G. Doe served the Deposition Notice, scheduling the deposition of RUSD's PMQ for February 25, 2026. (Jimenez Decl., ¶¶ 3 and 4, Exh. A.) The parties met and conferred. (Id., ¶ 9.) On March 6, 2026, RUSD filed a Request for Informal Discovery Conference ("IDC"). (Id., ¶ 5, Exh. B.) The IDC proceeded on March 26, 2026, but no resolution was reached. (Id., ¶¶ 10 and 11.)

Categories

Nos. 1 and 3 seek testimony regarding any complaints made by any student[/any parent] to RUSD alleging sexual misconduct by a RUSD employee between 2005-2010, respectively.

Categories

Nos. 2 and 4 seek testimony regarding any complaints made by any student[/any parent] to RUSD alleging sexual misconduct by a RUSD employee between 2011-2018.

Category

No. 5 seeks testimony regarding all reports made to law enforcement or child protective services by RUSD in response to each complaint made alleging sexual misconduct of a student by an RUSD employee.

Category

No. 6 seeks testimony regarding all investigations conducted by RUSD in response to each complaint made alleging sexual misconduct of a student by an RUSD employee. Category No. 7 seeks testimony regarding all findings made by RUSD in response to each such investigation.

Category

No. 8 seeks testimony regarding all disciplinary actions taken by RUSD in response to each complaint made alleging sexual misconduct by an RUSD employee.

"[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject

matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010). "The burden rests upon the party seeking the discovery to provide evidence from which the court may determine" that matters requested in discovery are either admissible or are reasonably calculated to lead to the discovery of admissible evidence. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 223.)

Here, the only "evidence" provided by the motion is found in Paragraph 12 of Jimenez's declaration, that "[t]he requested testimony is necessary to prove Plaintiff's negligence claim, including the District's actual and constructive notice of the risk of teacher-on-student sexual abuse, the foreseeability of the harm to Plaintiff, and the adequacy of the District's supervision, investigation, discipline, and mandated-reporting practices. Based on the District's records and the testimony developed in this action, the District documented prior complaints concerning Martinez years before he was placed in a classroom with Plaintiff, including a written reprimand and a Notice of Unprofessional Conduct issued in 2012, a directive that a Suspected Child Abuse Report be filed (which, on information and belief, was not filed), and Martinez's subsequent transfer to Rowland Elementary without notice to the receiving administration of his documented history." (Emphasis added).

As RUSD

points out, "much of the foregoing is argument and not evidence" (Opp., 12:26); at any rate, the "evidence" pertains only to Martinez. The motion offers no evidence from the documents produced pursuant to the Court's October 3, 2024 order in support of its position.

RUSD posits that "a wholesale inquiry into all alleged complaints within the District, across many sites and over a broad range of time—involving persons other than Plaintiff and Jose Cruz Martinez—is not logically connected to the duty at issue in the case at bar." (Opp., 7:16-18.) The Court agrees. "[T]he potential legal responsibility of District administrators and supervisors for negligently hiring or retaining [alleged abusive employee] arises from the special relationship they had with plaintiff, a student under their supervision, which relationship entailed the duty to take reasonable measures to protect plaintiff from injuries at the hands of others in the school environment." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861,

877 [emphasis added].) Further, “[s]chool principals and other supervisory employees, to the extent their duties include overseeing the educational environment and the performance of teachers and counselors, also have the responsibility of taking reasonable measures to guard pupils against harassment and abuse from foreseeable sources, including any teachers. . . they know or have reason to know are prone to such abuse.” (Id. at 871 [emphasis added].)

The duty is whether RUSD knew, or had reason to know, that Plaintiff’s alleged perpetrator was prone to committing such abuse.

That said, the Court acknowledges that the categories “expressly reach complaints about Martinez himself” and “complaints concerning his conduct from 2005 through 2018 fall squarely within Categories 1-8.” (Motion, 8:18-20). Accordingly, the motion is granted, but with Categories No. 1-8 limited as to Martinez only.